



SPONSOR: Rep. Osienski & Sen. Paradee

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 172

AN ACT TO AMEND TITLE 4 OF THE DELAWARE CODE RELATING TO THE DELAWARE MARIJUANA CONTROL ACT.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1347, Title 4 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1347. Background checks.

4 (a) All of the following persons are required to complete a background check under this chapter:

5 (3) A person who is or seeks to become a director, officer, ~~board member, or agent~~ or board member of a
6 licensed marijuana establishment or a business entity that is an applicant for a marijuana establishment license.

7 (f) If a current applicant, person performing work at or for a marijuana establishment, director, officer, board
8 member, ~~agent~~, or person who holds an ownership interest of 10% or more in a licensed marijuana establishment or a
9 business entity that is an applicant for a marijuana establishment license obtains a background check under this section, the
10 State Bureau of Identification shall provide all of the following to the Division:

SYNOPSIS

 This bill makes a technical correction to the specific categories of persons required to obtain a fingerprint-based background check under this chapter in order to comply with the requirements of Public Law (Pub. L.) 92-544 for access to FBI criminal history record information.